**BRENDAN NGEHSI NEWANFORBI**
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**SUPERIOR COURT OF THE STATE OF CALIFORNIA**

**COUNTY OF ALAMEDA**

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| **BRENDAN NGEHSI NEWANFORBI,**<br><br>Petitioner,<br><br>v.<br><br>**CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the CHP Dublin Area; and DOES 1 through 10, inclusive,**<br><br>Respondents. | Case No. 26CV191136<br><br>**PETITIONER'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE, TO RESPONDENT CALIFORNIA HIGHWAY PATROL**<br><br>CMC: October 28, 2026<br>Time: 4:00 p.m.<br>Assigned for All Purposes to:<br>Hon. Jenna M. Whitman, Dept. 25<br><br>Action Filed: May 29, 2026<br>Trial Date: Not set<br><br>*[Discovery — not for filing]* |

# PETITIONER'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE, TO RESPONDENT CALIFORNIA HIGHWAY PATROL

TO RESPONDENT CALIFORNIA HIGHWAY PATROL AND TO ITS ATTORNEY OF RECORD:

Petitioner Brendan Ngehsi Newanforbi, appearing in propria persona, demands that Respondent California Highway Patrol produce the DOCUMENTS described below for

inspection and copying pursuant to Code of Civil Procedure sections 2016.010, 2016.020, 2017.010, and 2031.010 et seq.

This is a special proceeding of a civil nature. Code of Civil Procedure section 2016.020, subdivision (a), defines "action" to include a civil action and a special proceeding of a civil nature. The Civil Discovery Act therefore applies. Respondent California Highway Patrol appeared in this proceeding. More than ten days have passed since that appearance. Code Civ. Proc. § 2031.020(b).

The Demand is directed to surviving Count 1 of the Verified Petition for Writ of Mandate, as framed by the Court's August 29, 2026 Order Sustaining Demurrer in Part, with Leave to Amend (notice of entry August 31, 2026): whether the November 1, 2024 incident involved qualifying criminal activity in light of the claimed absence of probable cause for driving under the influence. Count 1 challenges an informal, five-sentence certification denial dated April 20, 2026. That denial was not the product of a formal evidentiary hearing under Code of Civil Procedure section 1094.5.

Petitioner seeks the paper that proves or kills that decision: what was shown to Judge A. Sekany to obtain blood-draw warrant WAR913372; the blood-draw and laboratory record; and the file Respondent considered, reviewed, possessed, or had available when Captain G. Serrato denied Form I-918 Supplement B certification on April 20, 2026.

## I. DEFINITIONS

1. "YOU," "YOUR," and "RESPONDENT" mean Respondent California Highway Patrol, including the Dublin Area office, Headquarters, and all officers, employees, agents, and representatives, including without limitation Officer Santiago Meza-Gonzalez (Badge 023295), Officer Jose Melano (Badge 023054), Captain G. Serrato, Lieutenant Gary Paul, Sergeant Eric

Dutra, and phlebotomist Aziza Ghaleb, and anyone else acting on YOUR behalf.

2. "PETITIONER" means Brendan Ngehsi Newanforbi, also identified in YOUR records as Brendan Ngwa Nforbi, driver license F7953179.

3. "INCIDENT" means the November 1, 2024 encounter on Interstate 580 East, Livermore, California, CHP Case No. RJ68845, CAD No. 241101GG0064, including the stop, detention, arrest, transport, blood draw, and booking under CAR913358.

4. "WARRANT" means search warrant WAR913372, presented to and signed by Judge A. Sekany on or about November 1, 2024, at approximately 2:34 a.m., authorizing a blood draw from PETITIONER.

5. "CERTIFICATION REQUEST" means PETITIONER's April 9, 2026 request that YOU certify Form I-918 Supplement B under Penal Code section 679.10, including the pre-completed form and supporting memorandum and exhibits.

6. "DENIAL" means the April 20, 2026 letter from Captain G. Serrato denying the CERTIFICATION REQUEST, File No. 390.18437.17620.26-050, and every draft, routing, and enclosure.

7. "DOCUMENT" and "DOCUMENTS" mean any writing as defined in Evidence Code section 250, including electronically stored information: paper, PDF, email, CAD and MDC records, text or chat messages, photographs, audio, video, laboratory printouts, chain-of-custody forms, warrant-system entries, and any other record, whether original, copy, draft, or metadata-bearing native file.

8. "COMMUNICATION" means any DOCUMENT that records, transmits, or reflects

information exchanged between two or more persons, including email, memorandum, CAD notes, MDC messages, text, letter, and recorded conversation.

9. "POSSESSION, CUSTODY, OR CONTROL" includes DOCUMENTS YOU have the legal right or practical ability to obtain, including records YOU submitted to the California Department of Justice, Bureau of Forensic Services, or another laboratory, and records YOU can obtain from the Alameda County Superior Court warrant file for WAR913372.

10. "IDENTIFY," when used as to a DOCUMENT not produced, means state the title or description, date, author, recipient, present custodian, last known address of that custodian, and the reason the DOCUMENT is not in YOUR POSSESSION, CUSTODY, OR CONTROL.

## II. INSTRUCTIONS

A. Time of production. Serve a written response and produce the DOCUMENTS on or before the date that is thirty (30) days after service of this Demand, plus any additional time provided by Code of Civil Procedure section 1010.6. If this Demand is served on September 15, 2026, Petitioner identifies October 20, 2026 as a reasonable date for inspection and production. If service occurs later, the statutory date controls.

B. Place and manner. Produce electronically to bnn.cdl@gmail.com, in searchable PDF, or in native format for ESI that is not reasonably converted to PDF. Bates-stamp each page. If YOU elect physical production, the place of inspection is 1455 Cat Tail Drive, Stockton, California 95204, between 10:00 a.m. and 4:00 p.m. on the production date. Related activity: copying, scanning, and photographing. Code Civ. Proc. § 2031.030(c).

C. Response format. For each request, respond as Code of Civil Procedure sections 2031.210 through 2031.280 require: produce; state an inability to comply under section 2031.230; or

object with specificity under section 2031.240. An inability-to-comply response must state whether the item never existed, was lost, misplaced, stolen, or destroyed, or has never been, or is no longer, in YOUR POSSESSION, CUSTODY, OR CONTROL, and must IDENTIFY the person or entity believed to have the DOCUMENT, including the Alameda County Superior Court, the Department of Justice, Bureau of Forensic Services, or any other laboratory or prosecutor.

D. Privilege. If YOU withhold any DOCUMENT, provide a privilege log identifying the DOCUMENT, the privilege claimed (including Evidence Code section 1040, if asserted), the date, author, recipients, and a description sufficient to test the claim. Produce all non-privileged portions. Official-information privilege is not an automatic bar to law-enforcement records; it must be invoked with the showing section 1040 requires.

E. Sealed warrant materials. If any portion of the WARRANT file is sealed, so state, IDENTIFY the sealing order by court, date, and case or warrant number, produce every unsealed portion, and produce the sealing order itself.

F. Documents already served. If a DOCUMENT was previously served in this proceeding (including the November 1, 2024 dashcam lodging of September 8, 2026), YOU may IDENTIFY it by date of service and description rather than re-produce it, unless the copy previously served was incomplete, redacted, or not the original-quality file.

G. Scope of custody. These requests reach DOCUMENTS in YOUR POSSESSION, CUSTODY, OR CONTROL. They do not seek peace-officer personnel files, Pitchess material, training histories, or DOCUMENTS concerning unrelated stops. They do not notice any deposition.

H. Protective order. Do not withhold non-privileged DOCUMENTS pending a protective

order. If YOU contend a DOCUMENT requires confidentiality protection, meet and confer in writing. Petitioner will negotiate use in this proceeding and in the related federal actions arising from the INCIDENT, and will not agree to a return-or-destroy clause that bars that use.

## III. REQUESTS FOR PRODUCTION

**REQUEST NO. 1.** The complete search-warrant package for WAR913372, including: (a) the application; (b) the affidavit and any supplemental affidavit or statement; (c) all attachments, exhibits, and incorporated writings; (d) every electronic-warrant submission, transmittal, confirmation, or system record (including any Alameda County e-warrant or WAR-system entry); (e) the warrant signed by Judge A. Sekany on or about November 1, 2024, at approximately 2:34 a.m.; (f) the return; (g) the inventory; and (h) any sealing, unsealing, or access order concerning the warrant or affidavit.

**REQUEST NO. 2.** Every DOCUMENT reflecting the factual showing made to Judge A. Sekany to obtain the WARRANT, including any draft affidavit, officer declaration, CHP Form 202, DS-367, CAD printout, photograph, dashcam still, or other writing presented, transmitted, read, or summarized to the magistrate, and any note of what was said to the magistrate that is not already contained in the package produced in response to Request No. 1.

**REQUEST NO. 3.** Every chain-of-custody DOCUMENT for the blood vials drawn from PETITIONER on November 1, 2024, in connection with the INCIDENT and the WARRANT, including collection forms, kit identifiers, vial labels, seals, storage logs, and the identity of the person who drew the blood (including Aziza Ghaleb, if that person drew the blood) and of every person who thereafter took custody of either vial.

**REQUEST NO. 4.** Every DOCUMENT reflecting the submission or transmittal of PETITIONER's blood samples from the INCIDENT to the California Department of Justice, Bureau of Forensic Services, or any other laboratory, including the sample identifier, laboratory request, shipping or courier record, and any acknowledgment of receipt.

**REQUEST NO. 5.** The complete toxicology, blood-alcohol, and forensic laboratory file for PETITIONER's November 1, 2024 blood samples, including every preliminary, amended, supplemental, and final report, printout, chromatogram, analyst notes, and result of 0.00 or any other value, whether or not a numerical BAC is reported.

**REQUEST NO. 6.** Every DOCUMENT showing the date YOU received any laboratory result described in Request No. 5, and the identity of each person who received, reviewed, routed, or was informed of that result, including any DOCUMENT showing whether the result was in YOUR POSSESSION, CUSTODY, OR CONTROL on or before April 20, 2026.

**REQUEST NO. 7.** COMMUNICATIONS, from November 1, 2024 through the date of YOUR response to this Demand, concerning: (a) the WARRANT; (b) the blood draw from PETITIONER and the laboratory testing of that blood; (c) whether to seek, file, refer, or decline criminal charges arising from the INCIDENT; or (d) the CERTIFICATION REQUEST or the DENIAL. This request includes COMMUNICATIONS with the Alameda County District Attorney's Office, the Department of Justice, Bureau of Forensic Services or any other laboratory, Officer Meza-Gonzalez, Officer Melano, Captain Serrato, and any other CHP personnel. It does not seek COMMUNICATIONS about unrelated investigations.

**REQUEST NO. 8.** The complete file of DOCUMENTS that Captain G. Serrato or YOU considered, reviewed, possessed, or had available when evaluating the CERTIFICATION REQUEST and issuing the DENIAL, including: (a) the April 9, 2026 request and all attachments; (b) the April 10, 2026 communication from Lieutenant Gary Paul; (c) the April

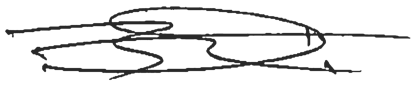
20, 2026 DENIAL and every draft; (d) the complete citizen-complaint and internal file used in that evaluation (including CHP Complaint Assignment, File No. 202400898 or POST Case No. PUBLIC-26-000371, to the extent reviewed or available); (e) the CHP Form 202, DS-367, Detention Certificate (Dublin CHP-01991, November 5, 2024), and dashcam or transcript, to the extent reviewed or available and not already produced in complete form; and (f) any note, routing slip, checklist, or legal guidance (including Attorney General Information Bulletin DLE-2024-05) used in the evaluation.

## IV. RESERVATION

Petitioner reserves the right to serve additional discovery, including further document demands and, if warranted, nonparty deposition or business-records subpoenas under Code of Civil Procedure section 2020.010 et seq. This Set One does not waive that right. It does not notice any deposition.

Respectfully submitted,

Dated: September 15, 2026



**BRENDAN NGEHSI NEWANFORBI**

Petitioner, In Pro Per